

3.	30-2024-01419077-CU-OE-NJC Hernandez vs. Anaheim Palace Inc.	Before the Court is a Motion to Compel Further Responses to Request for Production (“MF-PROD”) brought by Plaintiff Laura Romo (“Plaintiff”) against Defendant Anaheim Palace (“Defendant”). ROA 90. As a preliminary matter, the Court notes that plaintiff’s motion to compel deposition, originally on calendar to be heard before the Court on this day is trailing determination of this motion. Parties are to be prepared to discuss the status of that motion upon conclusion and final determination of the current motion to compel. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.020, 2031.210, 2031.240(b), 2031.310, and 2031.320, compelling Defendant to provide further, verified, code compliant responses to Plaintiff’s Request for Production (“PROD”), Set One, Nos. 1-12, and monetary discovery sanctions in the amount of \$5,400 upon Defendant and their attorneys of record, Law Office of Yahan Lee, for the costs borne by Plaintiff in bringing their MF-PROD. ROAs 90, 88. Defendant requests that the Court deny Plaintiff’s motion in its entirety. ROA 227. I. Code Compliant Responses to Requests for Production Responses to requests for production must take the form of either: (i) an agreement to comply; (ii) a representation of inability to comply; or (iii) objections. Cal. Civ. Proc Code § 2031.210(a). An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part; and (ii) that the items demanded that are in the responding party’s custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220. Importantly, the items to which the responding party agrees to produce must be of the “demanded
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		category” of items requested by the propounding party. <i>Id.</i> Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)(b). A statement that the responding party is unable to comply with the demand for production must: affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that “the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding party must state the name and address of said party. <i>Id.</i> A responding party who objects to any item or category requested for production, either in whole or in part, must: (i) identify with particularity the specific document or information demanded to which the responding party objects; and (ii) set forth the specific ground for objection. Cal. Civ. Proc. Code § 2031.240(b). If only part of an item or category of a demand is objectionable, the responding party must provide either a statement of compliance or inability to comply as to the remainder. Cal. Civ. Proc. Code § 2031.040(a). “The objection of [undue] burden is valid only when that burden is <i>demonstrated</i> to result in injustice. <i>West Pico Furniture Co. v. Super. Ct.</i>, 56 Cal. 2d 407, 418 (1961) (emphasis added). To make this showing, a party opposing discovery must make “a factual showing to the trial court of the nature and extent of the trouble and expense which would [] [be] entailed in responding to the request for discovery”, and “that the ultimate effect of the burden is incommensurate with the result sought.” <i>Mead Reinsurance Co. v. Super. Ct.</i>, 188 Cal. App. 3d 313, 321 (1986) (quoting <i>West Pico, supra</i>, 56 Cal. 2d at 417). A discovery request may
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	be deemed overly broad if it imposes an undue burden, seeks irrelevant information, or constitutes a serious intrusion into protected privacy interests. Cal. Judges Benchbook Civ. Proc. Discovery § 5.5; <i>Lopez v. Watchtower Bible & Tract Soc’y of New York, Inc.</i>, 246 Cal. App. 4th 566, 578-79 (2016) (rejecting a responding party’s overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” Cal. Civ. Proc. Code § 2017.020. Objections on the grounds that a discovery request is vague or ambiguous are valid “only if the question or request is wholly unintelligible or precludes an intelligent reply.” Cal. Judges Benchbook: Civil Proceedings-Discovery § 5.5. Relatedly, however, California Code of Civil Procedure Section 2031.030 requires propounding parties to designate items requested in discovery by either “specifically describing each individual item or by reasonably particularizing each category of item.” Cal. Civ. Proc. Code § 2031.030(c)(1). The categories must be “reasonably particularized from the standpoint of the party who is subjected to the burden of producing the materials.” <i>Calcor Space Facility, Inc. v. Super. Ct.</i> 54 Cal. App. 4th 216, 222 (1997) (finding that it would impose too great a burden on the propounding party to “specifically describe an individual item without first ascertaining its existence.”). a. Plaintiff’s PROD, Set One, Nos. 1-3 The Court finds that Plaintiff’s RFP, Set One, Nos. 1-3 are all facially overbroad on the grounds that they are not reasonably limited in time. ROA 88, pp. 2-4. Accordingly, Defendant’s objections on the grounds of undue burden are SUSTAINED and Plaintiff is not entitled to further responses. b. Plaintiff’s PROD, Set One, Nos. 4, 11 The Court finds that Plaintiff’s PROD, Set One, No. 4 is
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ambiguous as to the beginning and end of the one year period identified in the demand. ROA 88, p.5. Additionally, the Court finds that Plaintiff's PROD, Set One, No. 11, as written, is vague as to what and how many categories of documents it seeks. ROA 88, p.11. Accordingly, Defendant's objections to Plaintiff's PROD, Set One, Nos. 4 and 11, on the grounds of ambiguity are **SUSTAINED** and Plaintiff is not entitled to a further response.

c. Plaintiff's PROD, Set One, Nos. 5-10, 12

Pursuant to the foregoing, the Court finds that Defendant's objections to Plaintiff's PROD, Set One, Nos. 5-10, and 12 are unsubstantiated and are, therefore, **OVERRULED**. Additionally, the Court finds Defendants responses to the above are not code compliant. Accordingly, Plaintiff is entitled to further, verified, code compliant responses, without objections to Plaintiff's PROD, Set One, Nos. 5-10, and 12.

II. Mandatory Sanctions

California Code of Civil Procedure Section 2031.310(h) provides that the court "shall impose a monetary sanction under Chapter 7 against [anyone] who unsuccessfully makes or opposes a motion to compel further responses to a demand . . . *unless* it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2031.310(h).

To avoid sanctions, an unsuccessful opponent to a motion to compel may show "substantial justification" for his or her position—*i.e.*, a rational basis to conclude that the party's failure to fulfill its discovery obligations was justified. *Pollock v. Super. Ct.*, 93 Cal. App. 5th 1348, 1358 (2023) (*citing Foothill Properties v. Lyon/Copley Corona Associates*, 46 Cal. App. 4th 1542, 1557 (1996); *See also* Cal. Civ. Proc. Code § 2030.090(d); *U.S. Swimming, Inc.*, *supra* at 1435.

The Court "must make an explicit finding this exception exists," however, "the court *need not* make an explicit

		finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, Defendant does not offer, and the Court does not find, any substantial justification for Defendant’s failure to provide code compliant responses to Plaintiff’s PROD, Set One, Nos. 5-10, and 12. Additionally, Plaintiff does not offer, and the Court does not find, any substantial justification for Plaintiff’s pursuit of further responses to Plaintiff’s PROD, Set One, Nos. 1-4 and 11, over valid objections. Because Defendant does not seek sanctions in opposition to Plaintiff’s Motion, imposing sanctions upon Plaintiff would violate due process and therefore result in injustice. No such injustice would result in the imposition of sanctions upon Defendant, as both Defendant and Defendant’s counsel have proper notice. However, the Court finds that a reduction in Plaintiff’s sanctions is warranted in light of Plaintiff’s discovery misuse. III. Proper Allocation of Sanctions Liability California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added).
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	The burden then shifts to the attorney to prove that they did not provide such advice. <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); <i>compare Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) <i>with Kwan Software Eng'g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261. If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See Cornerstone supra</i>, 56 Cal. App. 5th at 799. Here, the Court finds that Defendant's failure to provide code compliant responses to Plaintiff's PROD, Set One, Nos. 5-10 and 12, is not attributable to client misconduct. Accordingly, the imposition of sanctions is appropriate upon Defendant's counsel only. IV. Determining a Reasonable Sanctions Amount Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone supra</i>, 56 Cal. App. 5th at 790-91 (compulsion,
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		causation, and reasonableness). “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). Here, having considered the above principles, Plaintiff’s declaration of the expenses incurred in bringing this Motion, and Plaintiff’s culpability for discovery misuse, the Court finds that Plaintiff is entitled to \$3,150 in monetary discovery sanctions. Accordingly, Plaintiff’s Motion to Compel Further Responses to Request for Production (ROA 90) is GRANTED IN PART. Defendant is ORDERED to provide further, verified, code compliant responses to Plaintiff’s Request for Production, Set One, Numbers 5-10 and 12, no later than fourteen (14) days after receipt of notice of this Order. Additionally, the Court IMPOSES monetary discovery sanctions upon Defendant’s counsel, Law Office of Yahan Lee, in the total collective amount of \$3,150, due at payable to Plaintiff’s counsel, Law Offices of Timothy J. Donahue, no later than thirty (30) days after receipt of this Order. Plaintiff to give notice.
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